

**POKER FLAT PROPERTY OWNERS' ASSOCIATION
v RODRIGUEZ, et al**

26CV48556

PLAINTIFF'S REQUEST FOR PRELIMINARY INJUNCTION

This is a dispute involving allegations of violations of Covenants, Conditions and Restrictions of the Lake Tulloch Shores Subdivision ("CC&R") brought by Poker Flat Property Owners' Association, Inc. ("Plaintiff") against Rudy Rodriguez ("Rudy"), Michelle Rodriguez ("Michelle") and William Artau ("Artau") (collectively "Defendants.")

Now before the Court is an order to show cause as to why a preliminary injunction should not be issued.

The Court grants Plaintiff's Request for Judicial Notice.

I. Background Facts and Relevant Procedural History

The Association is a homeowner's association with 595 member lots including 122 that are lakefront. (Complaint ¶ 11.) The Association has approximately 150 homes with full-time residents with the remainder typically vacation homes for owner members. (*Id.* ¶ 12.) On or about May 1, 2013, Rudy purchased real property within the Association known as 609 Dolores Way ("609 Property") (*Id.* ¶ 2.) Later, on or about July 12, 2021, Rudy added Michelle to title as husband and wife, as Community Property with Right of Survivorship. (*Id.* ¶ 3.) On or about July 1, 2016, Artau started occupying the 609 Property. (*Id.* ¶ 4.)

All owners and occupants of the 609 Property are required to comply with the Association CC&Rs. (Complaint ¶ 15, Ex. 1.) Article Five of the CC&Rs provides that the properties within the Association may only be used for "single-family residential dwellings" and for no other purpose. (*Id.* ¶ 16.) However, Defendants have converted the first floor of the 609 Property into three separate studio apartments, each being occupied by separate individuals, and also have converted the second floor of the 609 Property into another three separate studio apartments that are being occupied by separate occupants. (*Id.* ¶ 18.) By renting out portions of the 609 Property as apartments, Defendants are not in accordance with the CC&Rs. Additionally, Defendants are allegedly in violation of Article 11 of the CC&Rs because of failing to comply with parking, noise, and pet restrictions. (*Id.* ¶ 21(a)-(g).) Finally, Defendants are alleged to be in violation of Article 15 because of excessive trash. (*Ibid.*)

On February 10, 2026, Plaintiff filed this lawsuit, alleging causes of action for a preliminary injunction and declaratory relief. On February 27, 2026, the Court granted

Plaintiff's ex parte application for a temporary restraining order ("TRO.") The TRO enjoined Defendants from renting, leasing, subleasing, or otherwise permitting occupancy of the individual units at the 609 Property. It further required that further occupancy of the 609 Property be in accordance with the CC&Rs.

Defendants filed an opposition on April 3, 2026.

II. Legal Standard and Discussion

When determining whether to issue a preliminary injunction, the court considers two interrelated questions: (1) the likelihood that the moving party will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; *see also Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 206; Code Civ. Proc., § 526.)

A. Success on the Merits

It is well established that an HOA's covenants and restrictions are "enforceable equitable servitudes." (Cal. Civ. Code §5975; *Villa De Las Palmas Homeowners Assn. v. Terifaj* (2004) 33 Cal.4th 73, 78), and only unreasonable covenants may be subject to being unenforceable. (*Ibid.*) Further, covenants and restrictions are assumed to be valid, and the burden is on the homeowner to prove otherwise. (*Terifaj*, supra 33 Cal.4th at 74.)

The Defendants do not dispute that there are tenants living at the 609 Property. (Declaration of Michelle Rodriguez ("Rodriguez Decl.") ¶ 9.) They simply dispute that they have converted the 609 Property into separate apartments, and they argue that the Fire Marshall has no issue with the living arrangements. However, the position of the Fire Marshall is not relevant to the issue of whether the Defendants are violating the CC&Rs – which, by renting out the 609 Property to non-family tenants they clearly are doing. The CC&Rs are clear that occupancy of the 609 Property is limited to "single-family dwellings."

The Court finds that the Plaintiff has a strong likelihood of success on the merits.

B. Balance of Harms

The Court must next consider the balance of harms to both parties if an injunction is issued.

Plaintiff argues that it will be considerably harmed if the Defendants are allowed to continue openly violating the CC&Rs. It asserts that it will lose legitimacy if the other residents of the Association begin to believe that they can violate the CC&Rs without repercussion. Further, they argue that inequitable application of the CC&Rs could lead to residents moving or refusing to pay HOA dues – both of which would harm Plaintiff and lead to its demise. Indeed, "a requirement for upholding covenants and restrictions in common interest developments is that they be uniformly applied and

burden or benefit all interests evenly.” (*Terifaj*, supra 33 Cal.4th at 84.) If the Defendants are allowed to operate outside the bounds of the CC&Rs, Plaintiff will be in the unfair predicament of unequally applying the burden of the CC&Rs among its members. Furthermore, the increased occupancy of the 609 Property is causing additional burdens on other homeowners due to congestion, parking, noise and trash. (Declaration of Jaclyn Hilfai (“Hilfai Decl.”) ¶10.)

In opposition, Defendants assert that they will be harmed because they will be unable to continue collecting rents from their tenants. As the operation of Property 609 as anything other than a single-family house is a violation of the CC&Rs, the Defendants cannot credibly argue that they will be harmed by not being allowed to profit from their violations.

The Court concludes that the balance of harms weighs in favor of granting the injunction.

III. Conclusion

Plaintiff’s motion for preliminary injunction is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling.

10:00 a.m. CALENDAR

MATTER OF EVELYN B. McDONNELL SURVIVOR'S TRUST

25PR8922

**PETITIONER'S MOTION TO CONTINUE TRIAL;
RESPONDENT'S MOTION TO STRIKE FIFTH AMENDED
PETITION**

This matter involves a dispute over an amendment to the Evelyn B. McDonnell Survivor Trust dated December 18, 2010 ("Trust.") Now before the Court are two motions: 1) Motion to Strike Amended Petition and 2) Motion to Continue Trial Date. As the motions are interrelated, the Court will consider them together herein.

I. Background

A. Original Petition

On August 14, 2025, Petitioner filed her Petition to Invalidate the Fifth Amendment to the Trust. Petitioner alleged that Evelyn B. McDonnell ("Decedent") died on May 17, 2025 at 100 years of age. (Petition ¶ 1.) Decedent was the Trustor of the Trust, which was a revocable subtrust formed under the McDonnell 1995 Revocable Trust which was entered into between Decedent and her husband George. (*Ibid.*) On December 18, 2010, George died and the terms for his one-half of the community property held in Trust became irrevocable. As the surviving Trustor, the subtrust was also created containing her one-half of community property in Trust. (*Ibid.*)

In June of 2024, Evelyn entered into a long-term nursing home and David indicated that she "may not have much time left." (Petition ¶ 6.) On September 10, 2024, however, Evelyn made a Fifth Amendment to the Trust. (*Id.*) At that time Gary was her sole caretaker and procured the entire estate planning process, including being the only witness present during its execution. (*Id.* ¶ 7.) In addition, he made all her daily healthcare and financial decisions. (*Ibid.*) The changes to the Trust benefited Gary.

At the time of her death, Evelyn had one living adult child, Gary Baker ("Gary") and one predeceased child, David Baker ("David.") (*Id.* ¶ 5.) David died on November 29, 2021, leaving his wife, Donna Baker, and their two children, Petitioner and James Travis Baker. (*Ibid.*)

B. Amended Petition